

## SEKHON VS. HUTT

**CASE NUMBER: 26CV-0211420**

**Tentative Ruling on Special Motion to Strike:** Defendant Christopher Hutt moves to strike the Complaint pursuant to CCP § 425.16, on the grounds that Plaintiff's claims arise from protected activity, and that Plaintiff cannot establish a probability of prevailing. Plaintiff opposes the Motion. This matter was originally set for hearing on September 8, 2026. It was not properly noticed and the Court's tentative ruling was to deny the Motion without prejudice for failure to timely serve. However, both parties appeared on September 8, 2026, and stipulated to continue hearing on the Motion to today's date. Defendant now objects to the Court considering the Plaintiff's late-filed Opposition. The Court agrees that the Opposition was not timely filed or served. However, given the continuance of the hearing, Defendant had sufficient time to review and provide a substantive Reply, which he has done. Therefore, the Court exercises its discretion to consider the late-filed Opposition.

Anti-SLAPP Standards: A Strategic Lawsuit Against Public Participation (SLAPP) suit seeks to chill or punish a party for exercising their constitution rights to petition for redress of grievances or exercise of constitutional rights of free speech. *Neville v. Chudacoff* (2008) 160 Cal. App. 4th 1255, 1261. CCP § 425.16 provides a procedural remedy to dispose of SLAPP suits. *Rusheen v. Cohen* (2006) 37 Cal. 4th 1048, 1055-56. A litigant may seek to strike a cause of action arising from any act in further of the right to petition. CCP § 425.16(e)(2). CCP § 425.16 (b)(1), provides that "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the [C]ourt determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." A special motion to strike is thus a procedural remedy to dispose of lawsuits brought to chill the valid exercise of the constitutional rights of petition or free speech. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055-1056. "The only means specified in section 425.16 by which a moving defendant can satisfy the ["arising from"] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in [section 425.16,] subdivision (e)." *Park v. Board of Trustees of California State University* (2017) 2 Cal. 5th 1057, 1061.

Section 425.16 provides a two-step process for determining whether an action is a SLAPP. *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88. First, the Court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. *Ibid.* In deciding the initial issue of "arising from," the court considers "the pleadings, and supporting and opposing affidavits...." *Id.* at 89. If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim. *Id.* at 88. Plaintiff must demonstrate by admissible and competent evidence, a reasonable probability of prevailing on the merits. *Padres v. Henderson* (2003) 114 Cal.App.4th 495, 509. It is only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – that is a SLAPP, subject to being stricken under the statute. *Navellier, supra* 29 Cal.4th at 89.

First Prong of Anti-SLAPP Analysis: Defendant's Motion generally challenges the entire Complaint. The Complaint alleges four causes of action: 1) Defamation – Libel and Slander; 2) False Light Invasion of Privacy; 3) Intentional Infliction of Emotional Distress; and 4) Permanent Injunctive Relief. The Motion's only argument regarding any potentially protected activity is that

the Complaint was filed in retaliation for Defendant making a labor complaint concerning Plaintiff. The Court has reviewed the pleadings and supporting and opposing affidavits and finds that Defendant has made a threshold showing that Plaintiff's claims alleging that Defendant made false reports with governmental agencies arises from protected activity. Specifically, allegation (d) under the Third Cause of Action "Filing false complaints with governmental agencies, including the City of Redding Fire Department, Cal/OSHA, and the Employment Development Department." This conduct falls under CCP § 425.16(e)(1) and (2). Therefore, prong one of the Anti-SLAPP analysis is satisfied as to portions of the Complaint, so the Court must proceed to step two.

Second Prong of Anti-SLAPP Analysis: A plaintiff must demonstrate by admissible and competent evidence, a reasonable probability of prevailing on the merits. *Padres v. Henderson* (2003) 114 Cal.App.4th 495, 509. The court determines whether the plaintiff has sufficient evidence to show that she or she can satisfy each element of the cause of action. *Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325. A plaintiff's unverified complaint cannot be used to make the required showing on the second step of the anti-SLAPP analysis. *MMM Holdings, Inc. v. Reich* (2018) 21 Cal.App.5th 167, 186.

Plaintiff's only argument regarding his probability of prevailing on the merits of the allegations regarding Defendant's complaints to governmental agencies, appears to be that Defendant's own written communications corroborate Plaintiff's allegations. Plaintiff attaches as Exhibit A to his Declaration what appears to be an undated string of text messages, allegedly between Plaintiff and Defendant's wife. This is not admissible and competent evidence. Even if it were, it would not be sufficient to show that Plaintiff can satisfy each element of any of the causes of action alleged. Plaintiff has failed to demonstrate a reasonable probability of prevailing on the merits.

The Court does not strike the entire Complaint on these grounds. Instead, only the allegations of protected activity supporting the stricken claim are eliminated from the Complaint. *See Baral v. Schnitt* (2016) 1 Cal.5th 376, 396. Therefore, only the portions of the Complaint relating to Plaintiff's allegations of filing false complaints with governmental agencies will be stricken. Specifically, the following:

1. Complaint, page 4, paragraphs number 29-35.
2. Complaint, page 7, lines 1-2, 21-22 ("filing knowingly false complaints with governmental agencies").

Sanctions: Defendant requests the Court impose sanctions against Plaintiff pursuant to CCP § 425.16(c)(1) which provides that a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. Here, Defendant is proceeding in pro per under a fee waiver and has provided no evidence of fees or costs incurred in this matter. Defendant is not entitled to recover attorney fees. *Taheri Law Group v. Evans* (2008) 160 Cal.App.4th 482, 494 (a party not represented by counsel who litigates an anti-SLAPP motion on his own behalf may not recover attorney fees under the statute).

The Motion is **GRANTED** in part, as detailed above. No sanctions are imposed. The portions of the Complaint that allege Defendant made false complaints to governmental agencies are **STRICKEN**. Defendant is ordered to file a proposed order consistent with this ruling.

**Tentative Ruling on Motion to be Excused from Personal Appearance:** Defendant Christopher Hutt moves for an order permitting him to participate in this action exclusively through written

filings and excuse Defendant from personally appearing at hearings, unless the Court specifically orders Defendant's personal appearance. As a threshold issue, there is no proof of service on file for this Motion. Therefore, it is **DENIED** without prejudice.

Local Rule 5.17(c) provides in relevant part that "Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. The rulings may be found on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link. 15 Local Rules of the Superior Court of California, County of Shasta A party is not required to give notice to the Court or other parties of intent to appear to present argument. The tentative ruling, or other such ruling as the Court may render, will not become the final ruling of the court until the hearing."

Additionally, remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court (i.e. an Order is not required). The instructions for appearing remotely through WebEx can be found on the first page of the tentative rulings, which are posted every Friday on the Court's website.

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**9:00 a.m. Review Hearings**

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**DUGO VS. MAIU PARTNERS LLC**

**CASE NUMBER: 25CV-0208868**

This matter is on calendar today for trial setting. In its August 3, 2026 Order, the Court set today's date and ordered Plaintiff to give notice. No proof of service of notice of hearing has been filed. The Court designates the matter a plan II case and intends to set trial no later than April 6, 2027. Both sides have posted jury fees. If Defendant fails to appear today due to lack of notice, the Court will set a new trial setting date and again direct Plaintiff to give notice and to file proof of service.

**DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.**

**CASE NUMBER: 25CV-0208902**

This matter is on calendar for review regarding status of settled statement. The Court issued its Settled Statement on August 28, 2026. This matter is set for review regarding status of appeal on **Monday, March 22, 2027 at 8:30 a.m. in Department 64**. The parties are ordered to file a status statement at least five court days prior to the review hearing. No appearances are necessary on today's calendar.

**HARDING VS. ALFONSO, ET AL.**

**CASE NUMBER: 25CV-0207715**

This matter is on calendar for review regarding status of pending issues. Appearances are necessary on today's calendar.

**HEARN VS. KONDYBE, ET AL.**

**CASE NUMBER: 25CV-0208638**

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than March 2, 2027. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.